

**FAR SUBPART 13.5 SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL
ITEMS – SOLE SOURCE JUSTIFICATION AND APPROVAL**

CONTROL NUMBER: 2025-0012

CONTRACT NUMBER: TBD / PR [REDACTED]

Requiring Activity:

U.S. Naval Ship Repair Facility and Japan Regional Maintenance Center (SRF-JRMC), Sasebo.

Description of Requirement:

Ship Repair Facility and Japan Regional Maintenance Center (SRF-JRMC), Sasebo is requesting urgent technical representative services to repair and overhaul the tie rod ends and bearings of the #3 and #4 Ship Service Diesel Generators (SSDG) aboard a U.S. Naval Vessel. The contractor is also to perform operational testing to ensure satisfactory operation of both SSDGs following these repairs and provide two fully functioning engines.

Authority: Simplified Procedures for Certain Commercial Items, 41 U.S.C. 1901 as implemented by FAR Subpart 13.5.

Amount: \$367,587.07

1. Agency Contracting Activity:

N00406 – Naval Supply Fleet Logistics Puget Sound

2. Description of Action:

Award of a firm fixed-price supply type contract, on a sole source basis, for technical representative services to repair and overhaul tie rod ends and bearings of the #3 and #4 Ship Service Diesel Generators (SSDG) aboard a U.S. Naval Vessel. The contractor is to also perform operational testing to ensure satisfactory operation following these repairs and provide two fully functioning SSDGs. The government projects award for March 2025 using fiscal year 2025 Operation and Maintenance, Navy (O&M,N) funding. Funding acceptance letter was provided on 21 March 2025 in the amount of \$367,587.07.

Required services are to be provided by:

Fairbanks Morse, LLC dba Fairbanks Morse Defense (FMD)

1545 Tideland Avenue, Suite J

National City, CA

91950

Cage Code: 7Q8V6

The government was made aware of the critical nature of this mandatory work via a quote from FMD in response to warranty work in August 2024. After confirming the necessary repairs and preparing a SOW, SRF issued a letter of intent (LOI) in January 2025. This requirement was publically solicited on a sole-source basis with FMD on 13 February 2025 IAW FAR 13.501(a)(1). FMD provided a quote in response to solicitation N0040625Q0315 on 18 February 2025 in the total amount of \$367,587.07. As the quote provided by FMD exceeded the simplified acquisition threshold, a Justification and Approval is required IAW FAR 13.501(a)(2)(i).

3. Description of Supplies/Services:

Required services are for the Original Equipment Manufacturer (OEM), Fairbanks Morse Defense (FMD), to provide on-site technical representative services and operational testing to accomplish the repair and overhaul of the tie rod ends and bearings associated with the #3 and #4 SSDGs. Operational testing is to ensure both SSDGs are fully functioning upon completion of the Statement of Work (SOW).

Period of Performance: [REDACTED]

Total Value: \$ 367,587.07

4. Basis for Sole Source

a. **Authority Cited:** Simplified Procedures for Certain Commercial Items, 41 U.S.C. 1901 (or 41 U.S.C. 1903 for Special Emergency Procurement) as implemented by FAR Subpart 13.5:

- ☒ Unusual and compelling urgency
- ☐ Exclusive licensing agreements
- ☐ Industrial mobilization
- ☐ Brand Name (*Note approval level requirements are applicable only to this portion FAR 13.501(2)*)
- ☒ Other: Sole Source (as implemented by FAR 6.302-1)

b. Reason for Authority Cited:

Fairbanks Morse, LLC (dba Fairbanks Morse Defense), FMD, is the OEM of the #3 and #4 SSDG listed in the SOW. These diesel generators are Fairbanks Morse engine designs as manufactured by FMD who currently maintain the proprietary information regarding the design, blueprints, technical manuals and parts necessary to conduct repairs. OEM technicians meet the minimum qualification requirements as outlined in NAVSEA Item Number 009-09, Technical Representative.

Contract Specialist confirmed with the OEM that they have the capability to meet the Navy's urgent Period of Performance during the ship's current availability in March and April 2025. This includes the ability to provide the required parts to complete the requested services. Soliciting this requirement to other contractors would not be in the government's best interest at this time as no other provider would be able to provide a quote or support the urgent nature or timeline of this request. FMD has no authorized distributors and they are the only known source who is capable of performing this work.

The repairs and operational testing as outlined in the SOW are critical to the functionality of the #3 and #4 SSDGs aboard the U.S. naval vessel. Having two inoperable diesel generators leaves the ship at risk of not being mission ready following its availability period in March and April 2025. This work is urgently

needed in order to ensure the Navy's mission is being met and delay in a contract award would result in serious injury to the government.

5. Efforts to Obtain Competition:

In accordance with FAR 5.202(a)(s), this action will not be synopsized.

6. Actions to Increase Competition:

No efforts will be taken to increase competition at this time as market research indicates only Fairbanks Morse Defense can meet the requirement. This J&A will be posted publically after award and companies can indicate their interest or capability in future procurements.

7. Market Research:

Market research was performed in advance of the original Solicitation N0040625Q0315 in February 2025 and repairs requested were found to be unavailable from required and preferred sources of supply. Contract Specialist confirmed that FMD, a large business concern, has no authorized distributors or small business providers who are able to provide these services.

Additional market research confirms that FMD has performed several government contracts in the past under NAICS 336611, ship repair and rebuilding. Previous awards have been solicited on a non-competitive basis and awarded as sole-source. A prior award includes N0040623C0001 issued on 02 December 2022 by NAVSUP Fleet Logistics Center (FLC) Puget Sound for the inspection, repair and overhaul of a SSDG aboard another SRF-JRMC naval vessel.

8. Actions to Remove Barriers to Future Competition

For the reasons set forth in Paragraph 4, NAVSUP FLC Puget Sound has no plans at this time to compete future contracts for the types of supplies/services covered by this document. If another potential source emerges, NAVSUP FLC Puget Sound will assess whether competition for future requirements is feasible.

9. Any Other facts supporting the use of other than full and open competition.

Not applicable.

10. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Typed Name



Date: 3/22/2025

Title: Project Manager



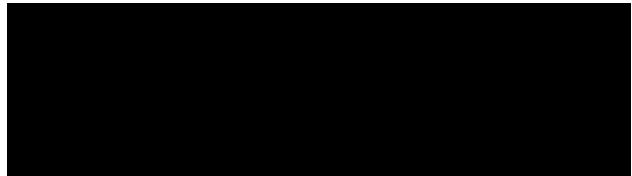
11. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Typed Name:



Date: 3/22/25

Title: Production Controller



12. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable.

13. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

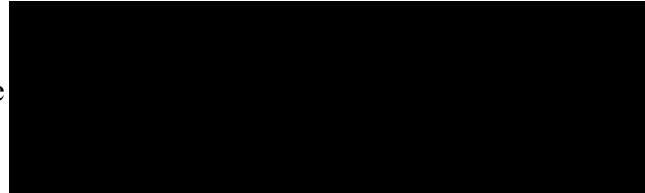
Typed Name:



Date: 3/24/2025

Title: Contracting Officer

Signature



Legal Counsel:

Phone:

Signature

Typed Name:



